Abhishek Gupta vs The State Nct Of Delhi on 28 October, 2022

Author: Jasmeet Singh

Bench: Jasmeet Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1414/2022
ABHISHEK GUPTA ..
Through: Mr. R.S Bind, Mr. Abh
Advs.

versus

THE STATE NCT OF DELHI ..
Through: Mr. Aashneet Singh, A
with SI Arvind Kumar,
Vihar East
Mr. Nishant Datta, Mr
Advs. for complainant
CORAM:
HON'BLE MR. JUSTICE JASMEET SINGH
ORDER

% 28.10.2022

1. This is an application seeking anticipatory bail in FIR No. 437/2022 dated 03.04.2022 u/s 420/468/471 IPC registered at Paschim Vihar, East Delhi.

2. As per the FIR, it is the alleged that the complainant Priyanka Kapoor was defrauded by one Mr. Ahbi Amaan, who expressed matrimonial interest in the complainant. The complainant was gullible and got swayed by the conversation of Ahbi Amaan and transferred an amount of Rs. 1,30,00,000/- to the bank account of the aforesaid person.

3. Subsequently, the applicant got to know that the person was playing a fraud on her and hence she wanted to initiate criminal proceedings.

4. The cousin of the complainant, Mr. Rohit Khanna told her that he knows the CBI officer who will get the case solved on priority basis.

5. It is further stated that the applicant, who posed himself as CBI officer was introduced by the cousin Mr. Rohit Khanna.

6. It is further stated that the applicant demanded Rs. 4,00,000/- (4 lakhs) for the procedural things that had to be done at the CBI and the cost of procedure was to be borne by the complainant.

7. On the said pretext, the applicant demanded and was paid Rs. 4,00,000/- by the complainant.

8. It subsequently transpired that the applicant was neither a CBI officer nor involved with the CBI in any manner and had cheated the complainant. Hence the FIR.

9. Mr. Bind, learned counsel for the applicant has stated that it is the complainant who owes money to the applicant and it was the applicant who gave/extended a friendly loan agreement dated 17.01.2022 in this regard.

10. In addition, there are Whatsapp chats between the parties showing that the complainant sought financial assistance from the applicant.

11. When the matter came up for hearing on 09.05.2022, this Court while granting interim protection, directed that the loan agreement as well as Whatsapp messages be sent to forensic laboratory.

12. The status report has been filed by respondent No. 1. As per the status report, it is stated "It is further submitted that accused Abhishek had not cooperated in the enquiry and the said FIR got registered. After registration of FIR accused was called to join investigation but he was evading. On 10.05.2022 accused Abhishek Gupta has joined investigation and he produced one mobile phone make model Vivo, Blue color, IMEI No.863591044644817 and 863591044644809 in which no sim card, no memory card was present. In the mobile phone in Whatsapp app, chat with complainant Priyanka Kapoor on her mobile no. 9811879579 was available and last chat was on 14.01.2022. Chat with Rohit on his mobile no. 9999767456 was available and last chat was on 27.01.2022. There was only one message on 27.01.2022 at 21:12 that was "Kal ka time". There is no chat with Rohit in the mobile phone of accused Abhishek on 27.01.2022 from time frame 21.06 to 21:12 which is filed with the bail application by the accused. Mobile no. of accused is 9821174307 from which he did chat with both the persons. The above said mobile phone has been kept on white paper and prepared a pullanda. The pullanda is sealed with the seal of RD. The aforesaid sealed pullanda has been taken in to police possession through this seizure memo. The mobile phone has been sent to FSL Rohini, Delhi and the result is still awaited. The friendly Loan agreement has also been produced by the accused and same is also taken in to police possession through seizure memo and sent to FSL Rohini, Delhi.

It is further submitted that there are some voice recordings of accused qua that voice samples of the accused are yet to be taken. Accused has been called to join investigation for (1) the details of rupees 5 lacs which he alleged to be given to the complainant (2) to produce the alleged video which he claimed to be made while giving cash to the complainant (3) for voice sampling (4) to make recovery of the amount of rupees 4 lacs and blank signed papers of the complainant but he is not joining investigation and he is not cooperating with the investigation."

13. I have heard learned counsel for the parties, the report of the forensic laboratory is inconclusive as they are unable to verify whether the signatures of the complainant were executed before printing of the document or after printing of the document.

14. Be that as it may, in the present case, the applicant has not joined investigation despite notices dated 07.07.2022 and 15.08.2022 being sent to him.

15. In addition the mobile phone handed over by the applicant was without sim card or memory card. The Whatsapp chats also seems to be deleted.

16. In addition, I am in agreement with the submission of learned APP that the applicant was working at a salary of Rs. 25,000/- and has been unable to explain as to how and where he would get Rs. 5,00,000/- to advance a loan to the complainant.

17. For the aforesaid reasons, I am not inclined to extend the interim protection granted to the applicant. The application for anticipatory bail in FIR No. 437/2022 dated 03.04.2022 u/s 420/468/471 IPC registered at Paschim Vihar, East Delhi, is hereby dismissed.

18. However, it is stated that whatever observations are made by this Court are prima facie observations for the purposes of disposal of the present anticipatory bail application and shall have no bearing on any pending matter before any Court.

JASMEET SINGH, J OCTOBER 28, 2022/dm Click here to check corrigendum, if any